

STATE OF NEW YORK

7917--A

2025-2026 Regular Sessions

IN SENATE

May 14, 2025

Introduced by Sens. SKOUFIS, SALAZAR -- read twice and ordered printed, and when printed to be committed to the Committee on Civil Service and Pensions -- recommitted to the Committee on Civil Service and Pensions in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the retirement and social security law, in relation to participation by public or quasi-public organizations in the retirement system

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision a of section 31 of the retirement and social
2 security law, as amended by chapter 379 of the laws of 1989, is amended
3 to read as follows:
4 a. Any public or quasi-public organization created wholly or partly or
5 deriving its powers by the legislature of the state and which organiza-
6 tion employs persons engaged in service to the public or any state agen-
7 cy as defined in section fifty-three-a of the state finance law, or the
8 New York state association of town superintendents of highways, inc. or
9 any school board association, by resolution legally adopted by its
10 governing body and approved by the comptroller, may elect to have its
11 officers and employees become eligible to participate in the retirement
12 system. Acceptance of the officers and employees of such an employer for
13 membership in the retirement system shall be optional with the comp-
14 troller. If ~~he~~ they shall approve their participation, such organiza-
15 tion, except as specifically provided in this article to the contrary,
16 shall thereafter be treated as a participating employer. Any election
17 made pursuant to this subdivision by a school board association shall be
18 applicable to current employees of such association. Notwithstanding
19 the foregoing provisions, any officer or employee of the New York state
20 association of town superintendents of highways, inc., the New York

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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1 state school boards association, the New York state association of coun-
2 ties, the association of towns of the state of New York, the New York
3 conference of mayors and other municipal officials, or any school board
4 association, first employed on or after the effective date of the chap-
5 ter of the laws of two thousand twenty-six which amended this subdivi-
6 sion, shall not be eligible to participate and/or receive service credit
7 in the retirement system based on such employment.

8 § 2. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

This bill would deny eligibility for membership in the New York State and Local Employees' Retirement System (NYSLERS) to people first employed by the following organizations on or after the bill's effective date:

1. The New York State Association of Town Superintendents of Highways, Inc.,
 2. The New York State School Boards Association,
 3. The New York State Association of Counties,
 4. The Association of Towns of the State of New York,
 5. The New York Conference of Mayors and Other Municipal Officials,
- and
6. any school board association.

If this bill is enacted into law, there will be no cost to NYSLERS.

Summary of relevant resources:

Membership data as of March 31, 2025 was used to measure the impact of the bill, the same data used in the Actuarial Valuations dated April 1, 2025. Distributions and other statistics can be found in the 2025 Report of the Actuary and the 2025 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2025 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The fair value of assets and GASB disclosures can be found in the 2025 Financial Statements and Supplementary Information.

Assumptions, demographics, and other considerations may have been modified to better reflect specific provisions of any proposed benefit change(s).

This fiscal note does not constitute a legal opinion on the viability of the bill, nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated February 26, 2026, and intended for use only during the 2026 Legislative Session, is Fiscal Note Number 2026-95. As Chief Actuary of the New York State and Local Retirement System (NYSLRS), I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member. I am a member of NYSLRS but do not believe it impairs my objectivity.